Supreme Court, U.S.
FILED
98 1811 MAY 5 - 1999
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No. 98-_____

IN THE

Supreme Court of the United States

Alexis Geier, *et al.*,

Petitioners,

v.

American Honda Motor Company, Inc., *et al.*,

Respondents.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the District of Columbia Circuit

PETITION FOR A WRIT OF CERTIORARI

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QUESTIONS PRESENTED

1. Whether the U.S. Court of Appeals for the District of Columbia Circuit erred by holding, in direct conflict with five state courts of last resort, that an automobile manufacturer's compliance with a Federal motor vehicle safety standard that permits, but does not require, installation of airbags in passenger vehicles preempts state common law claims that an automobile was defectively designed because it lacked an airbag?

2. Whether the D.C. Circuit erred by holding that, because this Court engaged in implied preemption analysis in *Freightliner Corp. v. Myrick*, 514 U.S. 280 (1995), the lower courts are free to disregard the limitations on implied preemption most recently emphasized in *Cipollone v. Liggett Group, Inc.*, 505 U.S. 504 (1992), to find that a Federal motor vehicle safety standard promulgated pursuant to the National Traffic and Motor Vehicle Safety Act of 1966, 15 U.S.C. §§ 1381-1431, *impliedly* preempts common law claims, even though the Act *expressly* provides that "[c]ompliance with any Federal motor vehicle safety standard . . . does not exempt any person from any liability under common law"?

PARTIES TO THE PROCEEDING

The parties to the proceedings below were petitioners Alexis Geier, William Geier, and Claire Geier (as appellants) and respondents American Honda Motor Company, Inc., Honda of America Manufacturing, Inc., and Honda Motor Company, Ltd. (as appellees).

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OPINIONS BELOW

The opinion of the court of appeals (App. 1-16) is reported at 166 F.3d 1236. The order of the district court granting defendants' motion for summary judgment (App. 17-21) is not reported.

JURISDICTION

The court of appeals entered judgment on February 5, 1999. This Court has jurisdiction under 28 U.S.C. § 1254.

STATUTORY PROVISIONS INVOLVED

The National Traffic and Motor Vehicle Safety Act of 1966, as codified when the vehicle at issue in this case was manufactured, provided in pertinent part:

> **15 U.S.C. § 1392(d). Supremacy of Federal standards; allowable higher standards for vehicles used by Federal or state governments.** Whenever a Federal motor vehicle safety standard established under this subchapter is in effect, no State or political subdivision of a State shall have any authority either to establish, or to continue in effect, with respect to any motor vehicle or item of motor vehicle equipment any safety standard applicable to the same aspect of performance of such vehicle or item of equipment which is not identical to the Federal standard. Nothing in this section shall be construed as preventing any State from enforcing any safety standard which is identical to a Federal safety standard. Nothing in this section shall be construed to prevent the Federal Government or the government of any State or political subdivision

thereof from establishing a safety requirement applicable to motor vehicles or motor vehicle equipment procured for its own use if such requirement imposes a higher standard of performance than that required to comply with the otherwise applicable Federal standard.

* * * *

15 U.S.C. § 1397(k). Continuation of common law liability. Compliance with any Federal motor vehicle safety standard issued under this subchapter does not exempt any person from any liability under common law.

On July 5, 1994, Congress recodified the Act "without substantive change" (Pub. L. No. 103-272, 108 Stat. 745, 941). The new Code provisions, in relevant part, are as follows:

49 U.S.C. § 30103. Relationship to other laws.

(b) Preemption. (1) When a motor vehicle safety standard is in effect under this chapter, a State or a political subdivision of a State may prescribe or continue in effect a standard applicable to the same aspect of performance of a motor vehicle or motor vehicle equipment only if the standard is identical to the standard prescribed under this chapter. However, the United States Government, a State, or a political subdivision of a State may prescribe a standard for a motor vehicle or motor vehicle equipment obtained for its own use that imposes a higher performance requirement than that required by

the otherwise applicable standard under this chapter.

(2) A State may enforce a standard that is identical to a standard prescribed under this chapter.

* * * *

(e) Common Law Liability. Compliance with a motor vehicle safety standard prescribed under this chapter does not exempt a person from liability at common law.

All of the applicable preemption cases, including the decisions by the two courts below, discuss the provisions as codified before the 1994 recodification. This petition, therefore, uses the citations employed in those decisions.

STATEMENT OF THE CASE

On January 16, 1992, Alexis Geier was operating a 1987 Honda Accord in the District of Columbia. Ms. Geier was wearing the manual three-point lap belt and shoulder harness provided for the driver in the design of the car. Rounding a curve, the vehicle spun out of control and collided with a tree. Despite the fact that she was wearing the available lap belt and shoulder harness, Ms. Geier sustained grievous and serious head injuries. *See* App. 2; Complaint ¶¶ 4-7, 18-21.

When the 1987 Honda Accord at issue in this case was manufactured a federal regulation promulgated pursuant to the National Traffic and Motor Vehicle Safety Act of 1966, 15 U.S.C. §§ 1381 *et seq.* ("the Safety Act") – *i.e.*, Federal Motor Vehicle Safety Standard 208 – gave Honda the option to install

airbags in its car. *See* 49 C.F.R. § 571.208. Specifically, for cars manufactured between September 1, 1986, and September 1, 1987, Standard 208 required Honda, at a minimum, to install some form of passive restraint in a specified percentage of its cars and to install at least a manual three-point lap belt and shoulder harness in the remaining percentage. *Id. See also* App. 3. It also allowed all manufacturers to do more than the bare minimum required (including installing both an airbag and a manual three-point lap belt and shoulder harness in all cars).[1]

On January 12, 1995, Ms. Geier and her parents filed this lawsuit seeking damages under the common law of the District of Columbia against respondents American Honda Motor Company, Inc., Honda of America Manufacturing, Inc., and Honda Motor Company, Ltd. (collectively, "Honda") on theories of negligence, breach of warranty, and strict product liability. The Geiers alleged that the 1987 Honda Accord was negligently and defectively designed and that, if the car had contained a driver's-side airbag in addition to the manual lap belt and shoulder harness, Ms. Geier would not have been seriously injured in the crash.

Even though the design advocated by petitioners was fully consistent with Standard 208, Honda moved for summary judgment on the ground that the Geiers' claims were preempted by the Safety Act and Standard 208. App. 17. In response, petitioners pointed out, *inter alia*, that the Safety Act explicitly

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[1] As the lower court observed, the requirements of Standard 208 have since become more stringent. After September 1, 1989, car manufacturers had to install either an airbag or an automatic seatbelt that would signal the driver with a warning light if the belt became unhooked. App. 3. Currently, passenger cars manufactured after September 1, 1997, must have "an inflatable restraint system at the driver's and right front passenger's position." App. 3.

provides that "[c]ompliance with any Federal motor vehicle standard . . . does not exempt any person from any liability under common law." 15 U.S.C. § 1397(k). On December 10, 1997, however, the district court found that petitioners' claims were preempted on the theory that a jury verdict in their favor might establish a safety standard that was not identical to Standard 208. App. 17-20.

The court of appeals affirmed. App. 1-16. In its decision, the court first acknowledged that any conclusion that petitioners' claims are expressly preempted would be "problematic" in light of both the Act's "broadly worded savings clause" and the strong presumption against finding express preemption of common law claims when Congress' intent to preempt "is not clear from the statute's language." App. 10-11. Given the broad wording of the savings clause, the court reasoned, "it would be difficult to discern a 'clear and manifest purpose of Congress' to preempt a design defect claim based on the absence of an airbag." App. 11 (citations omitted).

The court of appeals ultimately decided that it need not resolve the express preemption question, however, since it found instead that petitioners' claims are *impliedly* preempted because they conflict with the regulatory framework established by Standard 208. App. 12. The court first rejected petitioners' claim that, under *Cipollone v. Liggett Group, Inc.*, 505 U.S. 504 (1992), the Safety Act's express provisions addressing the scope of preemption bar any inquiry into implied preemption. After acknowledging that *Cipollone* does contain language to that effect (App. 12), the court held that this Court's subsequent decision in *Freightliner Corp. v. Myrick*, 514 U.S. 280 (1995), repudiated *Cipollone*'s apparent holding that implied preemption may not be considered in cases where – as here – the statute itself expressly defines the scope of preemption. App. 12-13.

The court went on to hold that petitioners' claims are impliedly preempted on the ground that they conflict with federal law. While conceding that Standard 208 "does not mandate or forbid the use of airbags" (App. 14), the court adopted Honda's argument that imposition of common law liability for failure to install an airbag would interfere with the federal government's decision to make airbags only "one of several options car manufacturers could choose to comply with the passive restraint requirement of Standard 208 . . .." App. 15. Creation of these options, the court reasoned, was integral to the federal government's policy "of encouraging both public acceptance of the airbag technology and experimentation with better passive restraint systems." App. 15. Because common law liability for failing to install an airbag could "interfere with the regulatory method" embodied in Standard 208, the court concluded that petitioners' claims are "implicitly pre-empted" by the Act. App. 16.

REASONS FOR GRANTING THE WRIT

When Congress enacted the Safety Act in 1966, it unequivocally stated the preemptive effect that compliance with a Federal safety standard was to have on common law liability: "Compliance with *any* Federal motor vehicle safety standard issued under this subchapter does not exempt *any* person from *any* liability under common law." 15 U.S.C. § 1397(k) (emphasis added). The D.C. Circuit's preemption decision contravenes these plain words and conflicts with the ruling of five state courts of last resort to address this preemption issue. The lower court's ruling also demonstrates, and increases, the confusion created by this Court's decision in *Myrick* about the Safety Act's preemptive effect. Finally, the decision below incorrectly answers an important federal question that has not been, but should be, decided by this Court: whether Congress intended the Safety Act to preempt state common law claims.

This Court should grant review to resolve the conflict among the federal courts of appeal and state courts of last resort, eliminate the confusion caused by *Myrick*, and decide whether Congress' words mean what they say.

1. The Decision Below Conflicts With the Decisions of Five State Courts of Last Resort.

The Court of Appeals' decision expands and exacerbates the growing conflict among the federal courts of appeals and the state courts of last resort over the Safety Act's preemptive effect with respect to claims that an automobile is defective because it lacks an airbag. Only this Court can bring the conflict to an end. If this Court does not step in, the conflict will only get worse, as the decision below reflects.

To date, five federal courts of appeals and two state courts of last resort have held that common law claims based on the absence of an airbag are preempted by federal law. *See Harris v. Ford Motor Co.*, 110 F.3d 1410 (9th Cir. 1997); *Montag v. Honda Motor Co.*, 75 F.3d 1414 (10th Cir.), *cert. denied*, 519 U.S. 814 (1996); *Pokorny v. Ford Motor Co.*, 902 F.2d 1116 (3d Cir.), *cert. denied*, 498 U.S. 853 (1990); *Taylor v. General Motors Corp.*, 875 F.2d 816 (11th Cir. 1989), *cert. denied*, 494 U.S. 1065 (1990);[2] *Wood v. General Motors Corp.*, 865 F.2d 395 (1st Cir. 1988), *cert. denied*, 494 U.S. 1065 (1990); *Cellucci v. General Motors Corp.*, 706 A.2d 806 (Pa.

[2] As the lower court noted, "[t]he Eleventh Circuit recently reaffirmed *Taylor*. In *Irving*, the court noted that although its decision in *Myrick v. Fruehauf Corp.* stated that *Taylor* had been abrogated in part, *see* 136 F.3d at 767 n.1 (citing *Myrick*, 13 F.3d 1516, 1521-22 (11th Cir. 1994)), subsequent Supreme Court precedent made clear that '*Taylor* is correct and can be used for evaluating pre-emption of state law.' *Id.*" App. 7.

1998); *Cooper v. General Motors Corp.*, 702 So.2d 428 (Miss. 1997).

In each of these cases, as here, "Standard 208 did not require airbags for the model-year cars in question, but presented them as one of several options from which manufacturers could choose." App. 7. And, with the exception of the Ninth Circuit in *Harris* (which found express preemption of no-airbag claims), in each case, as here, the court concluded that the plaintiffs' claims were impliedly preempted because they conflicted with federal law.[3]

These decisions are flatly contrary to the holdings of five state courts of last resort that the Safety Act does *not* preempt no-airbag claims. First, in 1995, the New Hampshire Supreme Court unanimously held in *Ford Motor Co. v. Tebbetts*, 665 A.2d 345 (N.H. 1995), *cert. denied*, 516 U.S. 1072 (1996), that the Safety Act expressly preserves all common law claims; that Congress' plain words preclude any finding of implied preemption; and that auto manufacturers can therefore be sued under common law for defective designs that lacked airbags.

Later the same year, in *Wilson v. Pleasant and General Motors Corp.*, 660 N.E.2d 327 (Ind. 1995), the Supreme Court of Indiana agreed in all respects – and held that, even if implied preemption could be reached, there is no conflict between a no-airbag claim and Standard 208 because, *inter alia*, "[Standard]

[3] In *Cooper*, the Mississippi Supreme Court stated in *dicta* that there might be express preemption as well, but it ultimately decided the case on implied preemption grounds. *See* 702 So.2d at 434. ("In the case sub judice, there appears to be both express preemption, under § 1392(d), and implied preemption . . . [but] this Court will filter this case through an implied preemption grid.").

208 does not prohibit airbags – it only permits some other alternatives." *Id.* at 337.

Since that time, the Supreme Court of Arizona, the Supreme Court of Ohio, and the New York Court of Appeals have all followed suit, holding that an automobile manufacturer may be sued for failure to install airbags in its vehicles. *See Munroe v. Galati*, 938 P.2d 1114 (Ariz. 1997) (finding no express or implied preemption of no-airbag claim); *Minton v. Honda of America Mfg., Inc.*, 684 N.E.2d 648 (Ohio 1997) (same); *Draitel v. Toyota Motor Corp.*, 699 N.E.2d 376 (N.Y. 1998) (same).

Thus, there is a deep split among a host of federal and state courts of last resort regarding the precise question presented in this case: whether a manufacturer may be sued for failing to install airbags in one of its vehicles.[4] Notably, virtually all of these courts agree that there could be no *express* preemption of common law claims under the Safety Act.[5] This

[4] The lower federal courts and state trial and appellate courts are also deeply split on this issue. *See generally Cellucci*, 706 A.2d at 812 n.4 (collecting cases); *Cooper v. General Motors Corp.*, 702 So.2d at 433-34 (same).

[5] As noted above, the only exception among the federal courts of appeals is the Ninth Circuit's decision in *Harris*, 110 F.3d at 1416, holding express preemption of no-airbag claims. There is also *dicta* to that effect in the Mississippi Supreme Court's decision in *Cooper*, 702 So.2d at 434. *See* n.3, *supra*. We note, however, that a number of state and federal lower courts have held that there is express preemption of no-airbag claims. *See generally Cellucci*, 706 A.2d at 812 n.4 (collecting cases). In a different context, the U.S. Court of Appeals for the Seventh Circuit has recently held that common law claims involving a defective windshield are expressly preempted by the Safety Act. *See Garcia v. Volvo Europe Truck, N.V.*, 112 F.3d 291, 297 (7th Cir. 1997), *cert. denied*, 118 S. Ct. 697 (1998). The Supreme Court of Idaho has also concluded that the Safety Act expressly

is not surprising, given that the Act's savings clause explicitly provides that "[c]ompliance with any Federal motor vehicle standard . . . does not exempt any person from any liability under common law." 15 U.S.C. § 1397(k). As the New York Court of Appeals stated in *Drattel*, this language "potently and pointedly negates any lingering notion of express preemption of state common-law claims." 699 N.E.2d at 382.

These courts differ, however, over the extent to which no-airbag claims are *impliedly* preempted by virtue of a conflict with federal law. Five state courts of last resort have held that, in view of the Safety Act's remarkably clear savings clause, it is unnecessary to even reach the question of implied preemption. *See Tebbetts,* 665 A.2d at 348; *Munroe*, 938 P.2d at 1117-18; *Minton*, 684 N.E.2d at 658; *Drattel*, 699 N.E.2d at 382-83; *Wilson*, 660 N.E.2d at 334-36. In these courts' view, Congress' plain words on the subject are both the beginning and end of the matter: the Safety Act does not under any circumstance preempt common law claims.[6]

On the other hand, four federal appellate courts and two state supreme courts have either rejected or failed even to consider the possibility that the Act's express language prohibits any inquiry into implied conflict preemption. App. 12-13; *Montag*, 75 F.3d at 1417; *Pokorny*, 902 F.2d at 1122;

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preempts a claim that a car is defectively designed because it lacks a lap belt. *See Zimmerman v. Volkswagen of Am., Inc.*, 920 P.2d 67, 72 (Idaho 1996), *cert. denied*, 117 S. Ct. 1245 (1997). These decisions are in direct conflict with all of the other cases cited herein – including the decision below – that reject the argument that the Safety Act expressly preempts common law claims.

[6] With the exception of *Tebbetts*, 665 A.2d 345, each of these cases went on to hold that, in any event, there could be no finding of implied preemption because no-airbag claims do not conflict with federal law.

Taylor, 875 F.2d at 825-26; *Wood*, 865 F.2d at 414-16; *Cellucci*, 706 A.2d at 809-10; *Cooper*, 702 So.2d at 435-37. These courts have all gone on to hold that no-airbag claims *do* conflict with federal law, primarily because they supposedly interfere with the "options" created by Standard 208.

This ongoing dispute about the Safety Act's preemptive effect has serious practical consequences. There are currently thousands of automobile design defect lawsuits pending throughout the nation, hundreds of which involve the manufacturers' failure to install lap belts, shoulder harnesses, and/or airbags. The preemption issue has been raised or is lurking in all of these cases. The legal and judicial resources being spent on this issue are mushrooming, with no end to the conflict in sight.

It is clear, moreover, that the time is ripe for this Court to resolve the conflict for once and for all. Eleven years ago, in response to a petition for *certiorari* in *Wood v. General Motors Corp.*, 865 F.2d 395 (1st Cir. 1988) (finding no-airbag claims preempted by federal law), this Court invited the United States to express its views as to whether review was warranted. In response, the United States opined that review was premature given the lack of a conflict among the federal courts of appeals or state courts of last resort. *See Wood v. General Motors Corp.*, No. 89-46 (October Term, 1989), Brief for the United States as *Amicus Curiae*, at 16-17. The petition was ultimately denied. *See* 494 U.S. 1065 (1990).

In the wake of *Wood*, this Court declined to revisit the issue of preemption under the Safety Act until it granted review of the Eleventh Circuit's decision in *Myrick v. Freuhauf*, 13 F.3d 1516 (11th Cir. 1994). At first glance, *Myrick* appeared to present an opportunity for this Court to decide the same question presented here: *i.e.*, whether no-airbag claims are

preempted by federal law.[7] As it turned out, however, *Myrick* involved an entirely different aspect of vehicle performance – anti-lock brakes in trucks – as to which there was no federal regulatory standard in place. *See* 514 U.S. 280, 286 (1995); App. 6. This Court ultimately issued an extremely narrow ruling finding no express or implied preemption because of the absence of any applicable federal regulation. *See id.* at 286-90. Thus, *Myrick* did not decide what the preemptive effect of the Safety Act would be in cases where – as here – the federal government *has* regulated in the area.

In the years since *Myrick*, the issue of airbag preemption has grown increasingly ripe for review. One year after *Myrick*, the New Hampshire Supreme Court held that no-airbag claims are not preempted by federal law. *See Tebbetts*, 665 A.2d 345. The following year, the Tenth Circuit held precisely the opposite. *See Montag*, 75 F.3d 1414. Although both *Tebbetts* and *Montag* raised the no-airbag preemption issue, review was arguably premature since they were the first rulings issued by a state court of last resort and a U.S. Court of Appeals since this Court decided *Myrick*. This Court ultimately agreed, and the decisions in *Tebbetts* and *Montag* were permitted to stand.

Since that time, however, a post-*Myrick* split has developed and grown increasingly deep, with two more federal

[7] The Question Presented in the *Myrick* petition was as follows: "Whether the National Traffic and Motor Vehicle Safety Act preempts state common law standards that conflict with federal standards adopted pursuant to the Act for reasons of safety and practicability; or whether, as the Eleventh Circuit held, one sentence in *Cipollone v. Liggett Group, Inc.*, [504 U.S. 406 (1992)], forecloses such preemption." *Freightliner v. Myrick*, No. 94-286 (October Term, 1994), Petition for a Writ of Certiorari at (i). Although this question is worded in generic fashion, the petition itself relied on the split of authority relating to preemption of *no-airbag* claims as a basis for seeking Supreme Court review. *See id.* at 13-18.

courts of appeals and two more state supreme courts finding implied preemption of no-airbag claims, and four more state courts of last resort rejecting such a finding. Thus, the basis for denying review in *Tebbetts* and *Montag* no longer exists; the issue that was presented, but ultimately left unanswered, by *Myrick* is ready for resolution by this Court.

2. The Conflict Below Stems Primarily from Confusion About the Proper Approach to Preemption Analysis that Only this Court Can Resolve.

The lower courts' ongoing disagreement about the Safety Act's preemptive effect largely stems from confusion created by this Court's decision in *Myrick* over an important question of federal law: whether common law claims may *ever* be impliedly preempted under the Safety Act or any other federal statutes that contain express anti-preemption provisions explicitly preserving the precise aspect of state law at issue. To appreciate why *Myrick* caused such confusion, it is essential to understand the context in which that decision took place.

For 20 years after the Safety Act's 1966 enactment, the nation's appellate courts unanimously agreed that the Safety Act does not preempt common law claims.[8] In 1986, however,

[8] *See Larsen v. General Motors Corporation*, 391 F.2d 495, 506 (8th Cir. 1968); *Knippen v. Ford Motor Co.*, 546 F.2d 993, 1000 (D.C. Cir. 1976); *Fox v. Ford Motor Co.*, 575 F.2d 774, 778 (10th Cir. 1978); *Stonehocker v. General Motors Corp.*, 587 F.2d 151, 156-57 (4th Cir. 1978); *Dawson v. Chrysler Corp.*, 630 F.2d 950, 957-58 (3d Cir. 1980), *cert. denied*, 450 U.S. 959 (1981); *Dorsey v. Honda Motor Co. Ltd.*, 655 F.2d 650, 656-57 (5th Cir. 1981); *Schwartz v. American Honda Motor Co., Inc.*, 710 F.2d 378, 383 (7th Cir. 1983); *Sours v. General Motors Corp.*, 717 F.2d 1511, 1516-17 (6th Cir. 1983); *Shipp v. General Motors Corp.*, 750 F.2d 418, 421 (5th Cir. 1985); *Volkswagen of America, Inc. v. Young*, 321

the U.S. Court of Appeals for the Third Circuit issued its since-rejected decision in *Cipollone v. Liggett Group, Inc.*, 789 F.2d at 181, expanding the implied preemption doctrine to find certain common law claims involving cigarettes preempted despite Congress' express intent to the contrary. Within a year, the First and Eleventh Circuits issued similar decisions. *Palmer v. Liggett Group, Inc.*, 825 F.2d 620 (1st Cir. 1987); *Stephen v. American Brands, Inc.*, 825 F.2d 312 (11th Cir. 1987).

Before this Court had an opportunity to overturn these decisions, the defective strain of implied preemption analysis adopted in the cigarette cases infected the interpretation of the Safety Act. In 1988, the First Circuit heard *Wood,* 865 F.2d 395, in which General Motors was arguing, as it had repeatedly argued in the past, that it was exempt from common law liability because it had complied with a Federal motor vehicle safety standard – specifically, Standard 208 governing occupant restraints. In a two-to-one decision, the First Circuit explicitly adopted the rationale of *Palmer,* its then-recent cigarette labeling decision, and became the first appeals court in the nation to find a common law claim impliedly (but not expressly) preempted by the Safety Act, despite Congress' clear statement of anti-preemptive intent. *Wood,* 865 F.2d at 410-11. In the next three years, the Third, Tenth, and Eleventh Circuits (and several lower courts) followed, albeit on varying rationales. *See Pokorny*, 902 F.2d at 1116; *Kitts v. General Motors Corp.*, 875 F.2d 787 (10th Cir. 1989), *cert. denied*, 494 U.S. 1065 (1990); *Taylor*, 875 F.2d at 816.

In 1992, however, this Court issued its decision in *Cipollone v. Liggett Group, Inc.*, 505 U.S. 504, explicitly

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A.2d 737, 746 (Md. 1974); *H.P. Hood & Sons, Inc. v. Ford Motor Co.*, 345 N.E.2d 683, 688 (Mass. 1976); *Arbet v. Gussarson*, 225 N.W.2d 431, 438 (Wis. 1976).

rejecting the Third Circuit's (and its sister courts') expansion of the implied preemption doctrine. In a portion of the opinion joined by seven members of this Court, *Cipollone* held:

> In our opinion, the pre-emptive scope of the [two statutes at issue] is governed entirely by the express language in . . . each Act. When Congress has considered the issue of pre-emption and has included in the enacted legislation a provision explicitly addressing that issue, and when that provision provides a 'reliable indicium of congressional intent with respect to state authority,' . . . 'there is no need to infer congressional intent to pre-empt state laws from the substantive provisions' of the legislation.

Id. at 517 (citations omitted). Thus, *Cipollone* held that the lower courts had erred in finding *implied* preemption of common law claims involving cigarettes, and that only *express* preemption analysis should have been employed. *Id.*[9]

Cipollone effectively overruled the various federal court of appeals decisions finding implied preemption of no-airbag claims under the Safety Act. It should have returned the lower courts to their unanimous view that the Safety Act expressly preserves all common law claims. And it probably would have done so, if not for the confusion caused by *Myrick*.

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[9] *See also id.* at 532 ("We resort to principles of implied pre-emption . . . only when Congress has been silent with respect to pre-emption.") (Blackmun J., concurring in part and dissenting in part); *id.* at 547 ("Once there is an express pre-emption provision, in other words, all doctrines of implied pre-emption are eliminated.") (Scalia, J., dissenting in part and concurring in the judgment).

In *Myrick*, this Court reviewed the first decision by a federal appeals court or state court of last resort to interpret the Safety Act's preemptive effect in the wake of *Cipollone*. *See Myrick v. Freuhauf Corp.*, 13 F.3d 1516 (11th Cir. 1994). As noted above, however, *Myrick* did not involve a no-airbag claim; rather, the case was a common law tort action for failure to install anti-lock brakes in a truck. *Id.* at 1518. And, unlike the no-airbag cases, which revolve around an alleged conflict between common law claims and Standard 208, there was no federal regulatory standard in effect governing anti-lock brakes in trucks. *See* App. 6. The Eleventh Circuit's decision, however, did not address this factual difference; instead, the court analyzed the case as though it involved a no-airbag claim. *See* 13 F.3d at 1519-22. It then reversed its prior holding in *Taylor*, 875 F.2d 816, that no-airbag claims are impliedly preempted under the Safety Act and Standard 208. In so doing, the Eleventh Circuit held that it was obligated to overturn *Taylor* in light of "*Cipollone*'s clear instruction that when there is an express pre-emption provision we should not consider implied pre-emption . . .." 13 F.3d at 1522.

This Court granted review to decide whether the Safety Act preempts common law claims that allegedly conflict with federal standards. *See supra* at n.7. However, this Court ultimately did not decide the issue because, as became apparent after review was granted, there was simply no federal safety standard in effect governing anti-lock brakes in trucks. Noting that the Safety Act's preemption clause "applies only '[w]henever a Federal motor vehicle safety standard is in effect,'" *Myrick* held that the absence of any federal standard foreclosed any finding of express preemption. 514 U.S. at 286-87. This Court accordingly declined to even consider whether the Act's savings clause expressly preserved all common law claims, *id.* at 287 n.3, or whether the Safety Act and Standard

208 would impliedly preempt a claim that an automobile is defective because it lacks an airbag. *Id.* at 289-90.

Myrick, however, went on to create massive confusion by rejecting as "without merit" the Eleventh's Circuit's holding that, under *Cipollone*, "implied pre-emption cannot exist when Congress has chosen to include an express preemption clause in a statute." *Id.* at 287. In an attempt to clarify the proper approach to preemption analysis, *Myrick* stated as follows:

> The fact that an express definition of the pre-emptive reach of a statute "implies" – i.e., supports a reasonable inference – that Congress did not intend to pre-empt other matters does not mean that the express clause entirely forecloses any possibility of implied preemption . . . At best, *Cipollone* supports an inference that an express preemption clause forecloses implied preemption; it does not establish a rule.

Id. at 288-89.

In regard to *Cipollone*, these statements made perfect sense. The two statutes at issue in *Cipollone* contained express preemption clauses (but, unlike, the Safety Act, no express savings clause). The fact that Congress thought to include those express clauses in the cigarette labeling statutes did not, without more, necessarily mean that Congress also thought of all other aspects of state law that might be preempted by the statutes – and intended to preserve them.

In the Safety Act, however, there is more than just an express preemption clause. There is an express *anti*-preemption clause explicitly preserving all common law claims. In *Myrick*, however, this Court did not address that fact, since it had

already deemed it unnecessary to decide the meaning of the savings clause given the absence of any federal regulatory standard governing anti-lock brakes. Instead, it simply said that the Eleventh Circuit's interpretation of *Cipollone* was "without merit" and then made the statements quoted above. As a result, *Myrick* has caused extensive confusion as to whether the Safety Act's express language precludes a finding of implied preemption in cases where – as here – there *is* a federal regulatory standard in place.

Thus, for example, five state courts of last resort have found that *Myrick* still "permits an inference" that, where Congress has clearly and unequivocally expressed an intention not to preempt common law claims, there can be no finding of implied preemption. *Munroe*, 938 P.2d at 1118. *See also Tebbetts*, 665 A.2d at 348; *Minton*, 684 N.E.2d at 658; *Drattel*, 699 N.E.2d at 382-83; *Wilson*, 660 N.E.2d at 334-36. In these courts' view, "*Myrick* did not overrule *Cipollone*. Rather, it is apparent that *Myrick* sought merely to disapprove of decisions interpreting *Cipollone* to mean that implied preemption can never exist when Congress has included an express preemption clause in the legislation in question." *Minton*, 684 N.E.2d at 658. *See also Wilson*, 660 N.E.2d at 336 (*Myrick* simply clarified that the mere existence of "an express preemption clause does not as a rule foreclose implied preemption.") These courts went on to hold, however, that the Safety Act's savings clause is so clear and unambiguous with respect to Congress' intent to preserve common law claims that any finding of implied preemption is foreclosed.[10]

[10] As noted above, however, in light of the unsettled state of the law in this area and the confusion created by *Myrick*, all but one of these courts went on to consider (and reject) the implied preemption claims.

In contrast, the two federal appellate courts and two of the state courts of last resort to consider the issue since *Myrick* have reached the opposite conclusion, holding that *Myrick* and *Cipollone*, taken together, "do[ ] not bar [a] court from considering [an automobile manufacturer's] implied preemption argument." App. 13. *See also Montag*, 75 F.3d at 1417; *Cellucci*, 706 A.2d at 809-10; *Cooper*, 702 So.2d at 435-37. These courts all went on to conclude that no-airbag claims are impliedly preempted by virtue of their conflict with federal law.

In short, in the time since *Myrick* "clarified" the appropriate approach to preemption analysis, no fewer than nine federal courts of appeals and state courts of last resort have come to radically different conclusions about whether it is even appropriate to consider – much less to find – implied conflict preemption of no-airbag claims. This confusion, moreover, has infected preemption analysis in Safety Act cases involving devices other than airbags,[11] and in cases involving other statutes with preemption provisions and savings clauses similar

[11] *Compare, e.g., Irving v. Mazda Motor Corp.*, 136 F.3d 764 (11th Cir. 1998) (defective seatbelt claim impliedly preempted by Standard 208; rejecting argument that implied preemption analysis is barred under *Cipollone*), *cert. denied*, 119 S. Ct. 544 (1998), *with Garcia v. Volvo Europe Truck, N.V.*, 112 F.3d 291, 297 (7th Cir. 1997), *cert. denied*, 118 S. Ct. 697 (1998); *Hyundai v. Alvarado*, 1998 WL 288678 (Tex. 1998) (no-lap-belt claim neither expressly nor impliedly preempted by Standard 208; noting that any finding of implied preemption is likely prohibited under *Cipollone*, but proceeding with implied preemption analysis as "jurisprudentially safer course"); *Hernandez-Gomez v. Volkswagen of America, Inc.*, 917 P.2d 236 (Ariz. 1996) (same); *Ketchum v. Hyundai Motor Co.*, 57 Cal. Rptr. 2d 595 (Cal. Ct. App. 1996) (no-lap-belt claim not expressly preempted by Standard 208; declining to reach implied preemption in light of Congress' clearly expressly intent to save common law claims); *Attocknie v. Carpenter Manufacturing, Inc.*, 901 P.2d 221 (Okla. App. 1995) (same).

to the Safety Act.[12] Thus, while *Myrick* may have provided some guidance regarding the proper approach to preemption analysis in cases like *Cipollone*, where the statute involved contains only a preemption clause (and no savings clause), it has created massive confusion among the lower courts about the preemptive effect of the Safety Act and other statutes with savings clauses that explicitly preserve all common law claims. Only this Court can resolve that confusion. To do so, it should grant review in this case and answer the important federal question presented.

3. Whether the Safety Act Preempts Common Law Claims is an Important Question of Federal Law Warranting Review.

The question of federal law presented by this case – whether the Safety Act preempts state common law claims that allegedly conflict with a federal safety standard – is extremely important. It boils down to this: whether courts are free to disregard the presumption against preemption, contravene

[12] For example, in *Lewis v. Brunswick*, 107 F.3d 1494 (11th Cir. 1997), *cert. granted*, 118 S. Ct. 439 (1998), the Eleventh Circuit held that a common law claim alleging that a boat is defective because it lacks a propeller guard is impliedly preempted by federal law, even though the Federal Boat Safety Act expressly provides that "[c]ompliance with this chapter . . . does not relieve a person from liability at common law or under State law." *Id.* at 1503 (citing 46 U.S.C. § 4311(g)). *See also Carstensen v. Brunswick Corp.*, 49 F.3d 430, 432 (8th Cir.), *cert. denied*, 516 U.S. 866 (1995). These cases are in direct conflict with a pre-*Myrick* decision of the Texas Supreme Court holding that no-propeller-guard claims are not preempted by federal law. *See Moore v. Brunswick Bowling & Billiards Corp.*, 889 S.W.2d 246 (Tex.), *cert. denied*, 513 U.S. 1057 (1994). Although this Court attempted to resolve this conflict by granting review in *Lewis*, the boat manufacturer settled the case after oral argument for an undisclosed sum of money. *See* "Unusual Settlement Removes Third Case from Justices' Reach," *The Washington Post*, May 26, 1998.

Congress' plainly-stated intent, and exempt manufacturers from liability under state common law by judicial decree. This is essentially the same issue that was presented – but ultimately left unanswered – in *Myrick*. *See supra* at 11-17 and n.7.[13] The time has come for this Court to resolve the controversy arising out of this critically important – but as yet unanswered – question.

Honda and its fellow manufacturers agree that the question presented is important. Four years ago, they jointly urged this Court to review the New Hampshire Supreme Court's decision in *Tebbetts*, 665 A.2d 345, which found no preemption of a common law claim that a car is defective because it lacks an airbag. *See Ford Motor Company v. Tebbetts*, No. 95-709 (October Term, 1995), Brief of the American Automobile Manufacturers Association and the Association of International Automobile Manufacturers, Inc. as *Amici Curiae* Supporting the Petition.[14] In their brief, the automobile manufacturers asserted that federal preemption of

[13] The decision below directly implicates the two questions of federal law that were explicitly reserved in *Myrick*: (1) Whether the term "standard" in the Safety Act's express preemption provision, 15 U.S.C. § 1392(d), preempts only state statutes and regulations, and not common law claims; and (2) whether 15 U.S.C. § 1397(k) is a savings clause that precludes a manufacturer from asserting its compliance with a federal safety standard to immunize itself from state common law liability. *See* 514 U.S. at 287. *See also* App. 6-7 (noting that "*Myrick* explicitly left open the question whether 'the term "standard" in 15 U.S.C. § 1392(d) preempts only state statutes and regulations, but not common law.' *Id.* at 287 n.3. Although it referred to § 1397(k), *see id.* at 284, the Court did not consider the relationship between the pre-emption and savings clauses.")

[14] At the time the brief was filed, respondent American Honda Motor Co. was a member of *amicus curiae* Association of International Automobile Manufacturers Association, which is a trade association representing the U.S. subsidiaries of international automobile companies.

no-airbag claims is "an issue of exceptional importance affecting national automobile safety and the automobile industry." *Id.* at 18. They emphasized that there are "literally millions of automobiles on the road today that are not equipped with airbags" (*id.* at 19) and that "[l]itigation over the preemptive effects of [Standard] 208 has proceeded for a decade, with no end in sight. . . . Only this Court can put an end to this controversy." *Id.* at 20.

The United States government also has taken the position that this is the type of no-airbag case that warrants review by this Court. As noted *supra* at 11, in response to the plaintiffs' petition for *certiorari* in *Wood*, 865 F.2d 395 (1st Cir. 1988), this Court invited the United States to express its views as to whether review was warranted. In its *amicus* brief, in addition to pointing out the absence of a fully-developed conflict on the issue (*id.* at 16-17), the United States stated that review was unwarranted because the vehicle at issue in *Wood* – a 1976 Blazer – was designed and manufactured before 1987, when the version of Standard 208 giving manufacturers a range of options with respect to the passive occupant restraint systems used in their vehicles went into effect. *Id.* at 18-19. Thus, *Wood* did not squarely present the issue of whether a common law no-airbag claim conflicts with the "options" framework established by Standard 208. Accordingly the government recommended that this Court wait to accept review of "a case involving a car as to which the [options] version of Standard 208 is applicable." *Id.* at 20. This is such a case, as the 1987 Honda Accord driven by Ms. Geier was manufactured after the relevant version of Standard 208 became law.

Nor could there be any serious question that this case implicates important issues of federal law. Since this Court decided *Myrick*, it has re-emphasized that two controlling principles guide preemption analysis. First, the inquiry starts

with a strong presumption *against* preemption, "particularly when Congress has legislated in a field which the States have traditionally occupied." *Medtronic, Inc. v. Lohr*, 116 S. Ct. 2240, 2250 (1996) (citation omitted). This approach "is consistent with both federalism concerns and the historic primacy of state regulation of matters of health and safety." *Id.* Second, "the purpose of Congress is the ultimate touchstone in every pre-emption case." *Id.* (citations omitted). "As a result, any understanding of the scope of a pre-emption statute must rest primarily on a fair understanding of *congressional purpose*." *Id.* (emphasis in original; citations omitted).

The decision below essentially disregards the presumption against preemption and Congress' plain language in the Safety Act. Congress could hardly have spoken more clearly with respect to its intent *not* to preempt common law claims: "Compliance with *any* Federal motor vehicle safety standard . . . shall not exempt *any* person from *any* liability under common law." 15 U.S.C. § 1397(k) (emphasis added). As the United States explained in its *amicus* brief to this Court in *Myrick*:

> the text and structure of the Safety Act, taking the preemption provision, Section 1392(d), and the savings clause, Section 1397(k), in combination, demonstrate that the Safety Act does not expressly preempt judicial orders or duties of care imposed by the common law, but rather preserves manufacturers' tort liability under state law.

Freightliner Corp. v. Myrick, No. 94-286 (October Term, 1994), Brief for United States as *Amicus Curiae* Supporting Respondents, at 9. With reference to the savings clause, the government argued that the provision's "plain meaning" was

that "Congress intended that manufacturers could be held liable in tort, even if their vehicles complied with all relevant safety standards." *Id.* at 14.[15]

If the plain words of the Safety Act left any question as to Congress' intent in regard to common law claims, it would surely be answered by the statute's legislative history. The House Committee, which added section 1397(k) to the Safety Act, explained its purpose in clear and unequivocal terms:

> It is intended and this subsection specifically establishes, that *compliance with safety standards is not to be a defense or otherwise to affect the rights of parties under common law particularly* those relating to warranty, contract, and *tort liability*.

H.R. Rep. No. 1776, 89th Cong., 2d Sess. 24 (1966) (emphasis added). The legislative history, thus, conclusively demonstrates that the Safety Act means what it says: Congress expressly preserved all common law claims. Despite this seeming clarity,

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[15] The United States took a similar position in its *amicus* brief in *Lewis v. Brunswick Corp.*, 107 F.3d 1494 (11th Cir. 1997), *cert. granted*, 118 S. Ct. 439 (1998), which presented the question of whether a claim that a boat was defective because it lacked a propeller guard is preempted by the Federal Boat Safety Act of 1971, 46 U.S.C. § 4306 (the "Boat Safety Act"), and by the U.S. Coast Guard's decision not to regulate propeller guards. *See Lewis v. Brunswick Corp.*, No. 97-288 (October Term, 1997), Brief for United States as *Amicus Curiae* Supporting Petitioners. There, the government argued that the Boat Safety Act, which contains a savings clause markedly similar to that at issue here, does not preempt *any* common law claims. In particular, the United States urged this Court to reject the manufacturer's express preemption arguments because, among other reasons, "the savings clause . . . makes clear Congress' explicit intent to preserve tort liability." *Id.* at 2. As noted *supra* at n.12, no decision was ever rendered in *Lewis* because the case was settled after oral argument.

a host of courts have nonetheless concluded that the Safety Act *expressly* preempts common law claims. *See* n.5, *supra*.

Given the foregoing, the decision below finding implied preemption of petitioners' no-airbag claims is plainly in error. In *Cipollone*, this Court found that Congress' enactment of extremely clear express preemption provisions, standing alone, bars resort to implied preemption principles. *See Cipollone*, 505 U.S. at 517. Here, Congress enacted both an express preemption provision and an express *anti*-preemption provision explicitly preserving the aspect of state law at issue. To allow implied preemption under these circumstances would render the limitations imposed on implied preemption in *Cipollone* meaningless – and make implied preemption analysis a tool for wholesale judicial activism and the widespread evasion of Congress' intent.

This issue, moreover, has implications beyond the cases arising under the Safety Act. Several other statutes contain savings clauses that are markedly similar to Section 1397(k). *See, e.g.*, Federal Boat Safety Act of 1971, 46 U.S.C. § 4311(g) ("[c]ompliance with this chapter does not relieve a person from liability at common law or under State law."); Consumer Product Safety Act, 15 U.S.C. § 2074(a) ("[c]ompliance with consumer product safety rules or other rules or orders under this Act shall not relieve any person from liability at common law or under State statutory law to any other person.") Nevertheless, various courts have held that common law claims can be expressly and/or impliedly preempted by these statutes. *See, e.g., Lewis*, 107 F.3d 1494 (11th Cir. 1997) (boat safety preemption); *Moe v. MTD*, 73 F.3d 179 (8th Cir. 1995) (consumer product preemption). This case therefore presents the opportunity to resolve the broader question presented in all of these cases: whether a plainly worded savings clause appearing expressly to preserve common law claims may be

disregarded to find preemption by virtue of a manufacturer's compliance with minimum federal safety standards.

Equally important, assuming that implied preemption can properly be considered, this case enables the Court to make clear that no-airbag claims are not impliedly preempted. Simply put, there is no conflict between petitioners' claims and Standard 208. It is true that Standard 208 required all 1987 model-year cars to have, at a minimum, either (1) a manual lap belt and shoulder harness, (2) an automatic belt system providing at least a specified level of protection in head-on crashes, or (3) an airbag or other device providing automatic protection in head-on and angular crashes. But is also true that Honda, which chose the first option, could have installed an airbag in the car driven by Ms. Geier *in addition to* the manual lap-belt and shoulder harness it installed, and still have complied with that option under Standard 208. And it is obvious that, if Honda had taken that step, Ms. Geier would have been safer. If, by failing to install an airbag, Honda violated the common law of the District of Columbia and caused Ms. Geier's injuries, Congress did not intend to exempt Honda from liability. Section 1397(k) makes that fact plain.

The lack of a conflict between petitioners' claims and federal law is made even clearer by the regulatory history of Standard 208, which is devoid of any suggestion that the federal government intended to preempt airbag-related common law claims. To the contrary, when it promulgated the version of Standard 208 applicable in this case, the federal government said that the design that petitioners assert Honda should have used in its car offered the most safety benefits of any occupant restraint system. *See* 49 Fed. Reg. at 28,986 (1984) ("[T]he most effective system is an airbag plus a lap and shoulder belt."). The regulatory preamble specifically noted that manufacturers would be prompted to use the best system by,

among other things, the threat of "potential liability for any defunct system." *Id.* at 29,000. And it tellingly quoted – without disagreement – the formal comment of a public health official that "[p]eople whose crash injury would have been averted had the car been equipped with an airbag can sue the car manufacturer to recover the dollar value of the injury." *Id.* at 28,972.

That is precisely what petitioners seek to do here. This Court has repeatedly refused to find that Congress intended to deprive tort victims of common law remedies, even when Congress has not expressly preserved common law claims, saying "it is difficult to believe that Congress would, without comment, remove all means of judicial recourse for those injured by illegal conduct." *Medtronic*, 116 S. Ct. at 2251 (citing *Silkwood v. Kerr-McGee Corp.*, 464 U.S. 238, 251 (1984)). In this case, Congress *did* comment and it expressly *preserved* all common law claims. The Court should grant review to ensure that Congress' intent is respected and that the Geiers – and thousands of similarly situated Americans – are not illegally denied their day in court.

CONCLUSION

This petition for writ of *certiorari* should be granted.

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Date: May 5, 1999

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United States Court of Appeals

FOR THE DISTRICT OF COLUMBIA CIRCUIT

Argued October 22, 1998 Decided February 5, 1999

No. 98-7006

ALEXIS GEIER, ET AL.,
APPELLANTS

V.

AMERICAN HONDA MOTOR COMPANY, INC., ET AL.,
APPELLEES

Appeal from the United States District Court
for the District of Columbia
(No. 95cvOO064)

Arthur Bryant argued the cause for appellants. With him on the briefs were *Robert M.N. Palmer*, *William Petrus* and *James W. Taglieri*.

Benjamin S. Boyd argued the cause and filed the brief for appellees. *Philip L. Cohan* entered an appearance.

Before: WILLIAMS, GINSBURG and ROGERS, *Circuit Judges*.

Opinion for the Court filed by *Circuit Judge* ROGERS.

ROGERS, *Circuit Judge*: The question on appeal is whether federal law pre-empts a defective design lawsuit against the American Honda Motor Company for damages arising from injuries suffered by Alexis Geier[1] when her 1987 Honda Accord, which did not have an airbag, crashed into a tree. The district court granted summary judgment for Honda on the ground that the lawsuit was pre-empted by the National Traffic and Motor Vehicle Safety Act of 1966, as amended, 15 U.S.C. § 1381 *et seq.* (Safety Act), and the Federal Motor Vehicle Safety Standard 208, 49 C.F.R. § 571.208 (1997) (Standard 208), which govern the passive safety restraints that automobile manufacturers must install.[2] Joining our sister circuits, we affirm, concluding that Geier's lawsuit is impliedly pre-empted.

Under the Supremacy Clause of the Constitution, the laws of the United States "shall be the supreme Law of the Land; . . . any Thing in the Constitution or Laws of any State to the Contrary notwithstanding." U.S. Const. art. VI, cl. 2. In applying this Clause, courts have identified three ways in

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[1] Appellants are Alexis Geier, a minor at the time of the accident, and her parents, William and Claire Geier. For ease of reference we refer to appellants as "Geier."

[2] The Safety Act is now codified at 49 U.S.C. § 30101 *et seq.* Geier's complaint was filed after the recodification. The revisions, however, were made "without substantive change" to the underlying provisions. *See* Pub. L. No. 103-272, § l(a), 108 Stat. 745, 745 (1994). Because the relevant circuit courts of appeal decisions, the district court, and the parties all use the old designations, we will use them as well.

which a federal statute or regulation can pre-empt state law: by express pre-emption, by "field" pre-emption (in which Congress regulates the field "so extensively that [it] clearly intends the subject area to be controlled only by federal law"), and by implied or conflict pre-emption, which applies when a state law conflicts with a federal statute or regulation. *Irving v. Mazda Motor Corp.*, 136 F.3d 764, 767 (11th Cir. 1998); *see also Cipollone v. Liggett Group*, 505 U.S. 504, 516 (1992). The Supreme Court has identified two presumptions that courts must consider when invoking the doctrine of pre-emption. First, in areas where States have exercised their historic police powers (such as the health and safety of their citizens), courts must start with a presumption against pre-emption, absent a "clear and manifest purpose of Congress." *Medtronic, Inc. v. Lohr*, 518 U.S. 470, 485 (1996) (quoting *Rice v. Santa Fe Elevator Corp.*, 331 U.S. 218, 230 (1947)). Second, in every pre-emption case, "[t]he purpose of Congress is the ultimate touchstone." *Id.* (quoting *Retail Clerks v. Schennerhorn*, 375 U.S. 96, 103 (1963)).

For cars manufactured between September 1, 1986, and September 1, 1987, the inclusion of a driver-side airbag was one of several passive restraint "options" from which car manufacturers could choose in order to comply with Standard 208.[3] *See* 49 C.F.R. § 571.208, S4.1.3.1.1 (1997). The effect of Standard 208 on state law is governed by two provisions of

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[3] The requirements of Standard 208 have become more stringent. After September 1, 1989, car manufacturers had to install "either an airbag or an automatic seatbelt that would signal the driver with a warning light if the belt became unhooked." *Harris v. Ford Motor Co.*, 110 F.3d 1410, 1412 (9th Cir. 1997) (citing 49 C.F.R. § 571.208). Presently, passenger cars manufactured after September 1, 1997, must have "an inflatable restraint system at the driver's and right front passenger's position." 49 C.F.R. § 571.208, S4.1.5.3 (1997). *See generally Wood v. General Motors Corp.*, 865 F.2d 395, 398-99 (lst Cir. 1988).

the Safety Act. The first, 15 U.S.C. § 1392(d),[4] provides:

> [w]henever a Federal motor vehicle safety standard established under this subchapter is in effect, no State or political subdivision of a State shall have any authority either to establish, or to continue in effect, with respect to any motor vehicle or item of motor vehicle equipment any safety standard applicable to the same aspect of performance of such vehicle or item of equipment which is not identical to the Federal standard.

The second provision, 15 U.S.C. § 1397(k),[5] a so-called savings clause, provides that "[c]ompliance with any Federal motor vehicle safety standard issued under this subchapter does not exempt any person from any liability under common law." Without stating whether it was adopting a theory of express or implied pre-emption, the district court reasoned that § 1392(d) pre-empted Geier's claim because recovery under her common law tort theory might establish a safety standard that was not identical to Standard 208. Adopting an

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[4] Section 1392(d) is now codified at 49 U.S.C. § 30103(b)(1) (1994), which uses similar language:

> [w]hen a motor vehicle safety standard is in effect under this chapter, a State or a political subdivision of a State may prescribe or continue in effect a standard applicable to the same aspect of performance of a motor vehicle or motor vehicle equipment only if the standard is identical to the standard prescribed under this chapter. . . .

[5] Section 1397(k) is now codified, with some changes, at 49 U.S.C. § 30103(e) (1994): "Compliance with a motor vehicle safety standard prescribed under this chapter does not exempt a person from liability at common law."

approach articulated by the First Circuit in *Wood v. General Motors Corp.*, 865 F.2d 395, 408 (lst Cir. 1988), and developed by the Ninth Circuit in *Harris v. Ford Motor Co.*, 110 F.3d 1410, 1415 (9th Cir. 1997), the district court ruled that although §§ 1397(k) and 1392(d) might appear to be in "direct conflict[,] . . . it is clear that both sections can be given effect if the court finds that 'compliance with Federal standards does not exempt anyone from any liability that the States have authority to impose.'" *Geier v. American Honda Motor Co.*, CA. No. 95-64, at 3 (D.D.C. Dec. 10, 1997) (quoting *Harris*, 110 F.3d at 1415). In the district court's view, a State lacks authority to require airbags because § 1392(d) and Standard 208 pre-empt such a requirement, and therefore no common law design defect claim remained for § 1397(k) to preserve.

On appeal, Geier contends that the district court erred in granting summary judgment because § 1392(d) expressly preserved all common law claims against pre-emption and the term "standards" in § 1392(d) applies only to state legislation or regulations. Honda maintains that summary judgment was appropriate because the Safety Act either expressly preempts Geier's lawsuit, or impliedly pre-empts it because a verdict in her favor would conflict with Standard 208.[6]

II.

The Supreme Court has considered pre-emption under § 1392(d), although it did not directly address the issues presented in the instant appeal. *Freightliner Corp. v. Myrick*, 514 U.S. 280 (1995), involved Standard 121, which was promulgated by the National Highway Traffic Safety

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[6] Honda does not maintain that field pre-emption applies.

Administration acting pursuant to the Safety Act, and required that tractor trailers stop within a certain distance. For all practical purposes, Standard 121 required the installation of antilock braking systems ("ABS"). Following the decision of the Ninth Circuit that Standard 121 was unsupported by substantial evidence, *see id.* at 285 (citing *Paccar, Inc. v. NHTSA*, 573 F.2d 632 (9th Cir. 1978)), a driver seriously injured in a collision with an 18-wheel tractor-trailer sued a truck manufacturer under a common-law state tort theory, alleging that the absence of ABS on the truck was a design defect that caused it to jackknife when the truck driver attempted to make a sudden stop. *See id.* at 282-83. In response, the manufacturer asserted that § 1392(d) expressly pre-empted such claims. The Supreme Court rejected this argument, observing that in view of the Ninth Circuit's suspension of Standard 121,[7] "[t]here is no express federal standard addressing stopping distances or vehicle stability for trucks and trailers" and that "States remain free to 'establish, or to continue in effect,' their own safety standards concerning those 'aspect[s] of performance.'" *Id.* at 286 (quoting § 1392(d)) (alteration in original). The Court further concluded that the claims were not impliedly pre-empted because the absence of any federal regulation governing ABS meant that private parties would not face a conflict between complying "with both federal and state law." *Id.* at 289. The Court also concluded that a finding of liability against tractor-trailer manufacturers "would undermine no federal objectives or purposes with respect to ABS devices." *Id.* at 289-90. The Court explicitly left open the question whether "the term

[7] The Ninth Circuit, in rejecting Standard 121, recognized that further refinement of the ABS system might lead to greater public safety. It thus held that the agency could enforce an ABS requirement if it could produce "more probative and convincing data evidencing the reliability and safety" of vehicles with ABS. *Paccar*, 573 F.2d at 643.

'standard' in 15 U.S.C. § 1392(d) preempts only state statutes and regulations, but not common law." *Id.* at 287 n.3. Although it referred to § 1397(k), *see id.* at 284, the Court did not consider the relationship between the pre-emption and savings clauses.

Thus far, five circuit courts of appeal have analyzed the issue of pre-emption under the Safety Act when plaintiffs have brought design defect claims based on the absence of airbags. In each case, Section 208 did not require airbags for the model-year cars in question, but presented them as one of several options from which manufacturers could choose. Four of the five circuit courts of appeal held that such claims were impliedly pre-empted, while the Ninth Circuit held that the claims were expressly pre-empted. *See, e.g., Harris*, 110 F.3d at 1416 (9th Cir.); *Montag v. Honda Motor Co.*, 75 F.3d 1414, 1417 (10th Cir. 1996); *Pokorny v. Ford Motor Co.*, 902 F.2d 1116, 1126 (3d Cir. 1990); *Taylor v. General Motors Corp.*, 875 F.2d 816, 827 (11th Cir. 1989);[8] *Wood*, 865 F.2d at 412 (lst Cir.). Contemporaneously, however, a number of state supreme courts have reached the opposite conclusion, holding that the Safety Act does not preclude these types of claims, relying heavily on the broad sweep of the savings clause. *See, e.g., Drattel v. Toyota Motor Corp.*, 699 N.E.2d 376, 382, 383-86 (N.Y. 1998); *Munroe v. Galati*, 938 P.2d 1114, 1119-20 (Ariz. 1997); *Tebbetts v. Ford Motor Co.*, 665 A.2d 345, 347-48 (N.H. 1995).

[8] The Eleventh Circuit recently reaffirmed *Taylor*. In *Irving*, the court noted that although its decision in *Myrick v. Fruehauf Corp.* stated that *Taylor* had been abrogated in part, *see* 136 F.3d at 767 n.1 (citing *Myrick*, 13 F.3d 1516, 1521-22 (11th Cir. 1994)), subsequent Supreme Court precedent made clear that "*Taylor* is correct and can be used for evaluating pre-emption of state law." *Id.*

As noted, Geier contends that § 1392(k) expressly preserved "all common law claims" against pre-emption and that the term "standards" in § 1392(d) applies only to state legislation or regulations. This contention obviously cannot be rejected out of hand, yet nor can Honda's contention that "§ 1392(d) expressly preempts state safety standards not 'identical' to applicable federal standards." In Honda's view, because Standard 208 allowed car manufacturers the option of choosing an airbag, a jury verdict in favor of Geier on her design defect claim would require car manufactures to comply with a different standard.[9]

The language of § 1392(d) is fairly sweeping, providing that when a federal motor vehicle safety standard is in effect, "no State or political subdivision of a State shall have *any* authority either to establish, or to continue in effect, with respect to any motor vehicle or item of motor vehicle equipment *any* safety standard applicable to the same aspect of performance of such vehicle or item of equipment which is not identical to the Federal standard." 15 U.S.C. § 1392(d) (emphasis added). At a minimum, this language restricts a State's authority to enact legislation or regulations that affirmatively require car manufacturers to adopt standards not identical to Standard 208. *See Wood,* 865 F.2d at 408. In other words, a State could not require, by statute or regulation, that a car manufacturer install airbags in models for which Standard 208 makes them only an option.

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[9] However, Geier's contention that the term "safety standard" in § 1392(d) applies to aspects of performance, while her lawsuit involves a design defect, gets her nowhere for reasons noted by the First Circuit in *Wood*, 865 F.2d at 416-17, including that although design and performance standards are "analytically distinct, in practice the line is not so clear," as here where "[b]y requiring seat belts or passive restraints, [Standard] 208 has elements of a design standard."

On its face, moreover, the term "standard" in § 1392(d) could apply to the requirements imposed by common law tort verdicts. As the Supreme Court has observed, state "regulation can be as effectively exerted through an award of damages as through some form of preventive relief. The obligation to pay compensation can be, indeed is designed to be, a potent method of governing conduct and controlling policy." *Cipollone,* 505 U.S. at 521 (plurality opinion) (quoting *San Diego Building Trades Council v. Garmon,* 359 U.S. 236, 247 (1959)); *see also Harris,* 110 F.3d at 1414; *Wood*, 865 F.2d at 410. So understood, the term "standard" in § 1392(d) is broad enough to include duties established by state tort law. *See Wood,* 865 F.2d at 410. As the Supreme Court's decision in *Medtronic,* 518 U.S. 470, analyzing the Medical Device Amendments of 1976 suggests, the use of the term "standard" in the Safety Act and "requirements" in the Medical Device Amendments appear to be for the same purpose, namely, to establish that a State cannot impose a duty on manufacturers that differs from those imposed by the federal government.[10] Common law liability in this specific context, therefore, can reasonably be viewed as constituting a "standard" that might conflict with Standard 208.

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[10] In *Medtronic*, five justices agreed that "state common-law damages actions do impose 'requirements' and are therefore pre-empted where such requirements would differ from those imposed" by the statute. 518 U.S. at 509 (O'Connor, J., concurring in part and dissenting in part); *id.* at 504 (Breyer, J., concurring in judgment). The *Medtronic* plurality, in contrast, concluded the term "requirements" was "linked with language suggesting that its focus is device-specific enactments of positive law by legislative or administrative bodies, not the application of general rules of common law by judges and juries," *id.* at 489, although it recognized that the Court "on prior occasions concluded that a statute pre-empting certain state 'requirements' could also pre-empt common-law damages claims." *Id.* at 487-88.

Section 1392(d), however, cannot be viewed in isolation, *see American Textile Mfrs. Inst., Inc. v. Donovan*, 452 U.S. 490, 513 (1981), but must be interpreted in light of the savings clause in § 1397(k), which provides that "[c]ompliance with any Federal motor vehicle safety standard issued under this subchapter does not exempt any person from any liability under common law." Honda interprets this language as preventing car manufacturers from using compliance with federal safety standards as a defense to common law liability, in cases where the State retains authority to impose such liability, and there is legislative history to support this view.[11] For example, Honda maintains that even with § 1392(d), plaintiffs could still pursue design defect claims when federal standards do not address the component at issue. The Ninth Circuit in *Harris* reached a similar conclusion, noting that "§ 1392(d) removes the States' authority to subject anyone to liability for the breach of non-identical safety standards. The most reasonable and plausible reading of § 1397(k), therefore, is that compliance with Federal standards does not exempt anyone from any liability that the States *have authority to impose.*" 110 F.3d at 1415 (emphasis added). *Cf. Wood*, 865 F.2d at 412.

The conclusion that Geier's lawsuit is expressly pre-empted by the Safety Act is problematic, however, for two reasons. First, the interpretation of the two provisions

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[11] H.R. Rep. No. 1776, at 24 (1966) ("It is intended, and this subsection [§ 1397(k)] specifically establishes, that compliance with safety standards is not to be a defense or otherwise to affect the rights of parties under common law. . . ."); S. Rep. No. 1301, at 12 (1966) (noting that "the Federal minimum safety standards need not be interpreted as restricting State common law standards of care. Compliance with such standards would thus not necessarily shield any person from product liability at common law").

adopted by *Harris* is not the only one available. For example, the broad language of the savings clause raises doubts that Congress intended to preserve State authority to impose standards only to the extent that the pre-emption clause did not take that power away. As the Court of Appeals of New York observed, "[i]t strains reason and common sense to suggest that Congress used sweeping language to create a constricted universe." *Drattel*, 699 N.E.2d at 382. The inclusion of a broadly worded savings clause such as § 1397(k) indicates that Congress did not wish to deprive plaintiffs of all their remedies at common law. To read § 1397(k) too narrowly would undermine the section's express language preserving common law liability. *Pokorny*, 902 F.2d at 1121.

Second, the presumption against pre-emption counsels against finding express pre-emption when the purpose of Congress is not clear from the statute's language. In light of the apparent tension between §§ 1392(d) and 1397(k), it would be difficult to discern from the Act a "clear and manifest purpose of Congress" to pre-empt a design defect claim based on the absence of an airbag. *See Medtronic*, 518 U.S. at 485. Four other circuits agree. *See Pokorny*, 902 F.2d at 1121 (3d Cir.); *Taylor*, 875 F.2d at 823-25 (11th Cir.); *Kitts v. General Motors Corp.*, 875 F.2d 787, 789 (10th Cir. 1989); *Wood*, 865 F.2d at 401 (1st Cir.).[12]

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[12] Although these circuits reject express pre-emption of no-airbag claims, their analysis differs. The First Circuit, for example, suggested that Congress in 1966 did not contemplate the development within state tort law of design defect claims that might conflict with federal safety standards. *Wood*, 865 F.2d at 403-04. As a result, the *Wood* court found no congressional intent either to pre-empt this type of action under section 1392(d) or to preserve it under the savings clause. *Id.* at 407. *Cf. Kitts*, 875 F.2d at 789 (adopting *Wood*'s implied pre-emption analysis without

(continued...)

Ultimately, we need not resolve whether Geier's claim is expressly pre-empted, however, because we conclude that a verdict in her favor would stand as an obstacle to the federal government's chosen method of achieving the Act's safety objectives, and consequently, the Act impliedly pre-empts her lawsuit. The conclusion arises largely from the position advanced by Honda, in the alternative, that state jury verdicts that hold manufacturers liable for not installing airbags will create a conflict with Standard 208.

As a threshold matter, we are unpersuaded by Geier's contention, relying on *Cipollone*, that the court cannot reach the implied pre-emption argument because congressional intent is expressly stated in § 1397(k), which saves all common law claims from pre-emption, and therefore only express pre-emption analysis is applicable. It is true that the Supreme Court in *Cipollone* observed that when Congress has included a provision explicitly addressing the issue of pre-emption, and

> when that provision provides a reliable indicium of congressional intent with respect to state authority, there is no need to infer congressional intent to pre-empt state laws from substantive provisions of the legislation. . . . Congress' enactment of a provision defining the pre-emptive reach of a statute implies that matters beyond that reach are not pre-empted.

505 U.S. at 517 (citations and internal quotation marks omitted). But the Supreme Court has also rejected Geier's interpretation. In *Myrick*, the Court noted that some circuit courts of appeal had read *Cipollone* to mean that "implied pre-emption cannot exist when Congress has chosen to include an express pre-emption clause in a statute. This argument is without merit." *Myrick*, 514 U.S. at 287. The Court instructed that the presence of "an express definition of the pre-emptive reach of a statute" only creates a reasonable inference "that Congress did not intend to pre-empt other matters." *Id.* at 288. Such a clause does not "entirely foreclose[ ] any possibility of implied pre-emption." *Id.*

The tension between §§ 1392(d) and 1397(k) prevents the identification of any "express definition" of the reach of pre-emption in the Safety Act. Furthermore, in *Myrick* the Supreme Court engaged in implied pre-emption analysis of the Safety Act after concluding that § 1392(d) did not "expressly extinguish state tort law" for no-ABS claims. *Id.* at 287; *see also Montag*, 75 F.3d at 1417. Rejecting the argument that *Cipollone* barred consideration of implied pre-emption in all cases involving express pre-emption language, the Supreme Court concluded that no implied pre-emption existed on the facts before it because "there is simply no federal standard for a private party to comply with." *Myrick*, 514 U.S. at 289. Therefore, *Cipollone* does not bar this court from considering Honda's implied pre-emption argument.

Implied conflict pre-emption occurs "where it is impossible for a private party to comply with both state and federal requirements, . . . or where state law stands as an obstacle to the accomplishment and execution of the full

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[12] (...continued)
discussing in detail the express pre-emption issue). The Third and Eleventh Circuits have criticized the *Wood* court's express pre-emption analysis, concluding that the savings clause covers design defect claims. *Pokorny*, 902 F.2d at 1121 n.6; Taylor, 875 F.2d at 825. The Eleventh Circuit agreed with the First Circuit, however, that express pre-emption did not apply in view of the conflict between the pre-emption and savings clauses and "the failure of Congress explicitly to include reference to state common law in the Act's pre-emption clause." *Id.* The Third Circuit also noted that Congress in other statutes had explicitly referred to common law actions when it sought to pre-empt them. 902 F.2d at 1121.

purposes and objectives of Congress." *Id.* at 287 (internal quotation marks omitted). Federal regulations, as well as federal statutes, can pre-empt conflicting state law. *Pokorny*, 902 F.2d at 1122; *see also Fidelity Fed. Sav. & Loan Assn v. de la Cuesta*, 458 U.S. 141, 153 (1982). Unlike *Myrick*, in which the Supreme Court found no implied pre-emption, *see* 514 U.S. at 288, the instant case involves a federal safety standard that governs the use of airbags in 1987 model-year cars. Although the standard does not mandate or forbid the use of airbags, it presents them as one of several options from which manufacturers may choose. While Geier maintains not unpersuasively that a design defect lawsuit based on the absence of an airbag does not conflict with Standard 208 because Honda can be held accountable under state law for failing to do more than the minimum required by the option it chose (*i.e.* installing a manual seat belt with a warning light), her argument fails to surmount the obstacle that a favorable verdict would present to achieving congressional objectives in the chosen manner. As the First Circuit observed in *Wood*, allowing liability for the absence of airbags would "interfere[ ] with the *method* by which Congress intended to meet" its goal of increasing automobile safety. *Wood*, 865 F.2d at 408. A successful no-airbag claim would mean that an automobile without an airbag was defectively designed. Congress, however, delegated authority to prescribe specific motor vehicle safety standards to the Secretary of Transportation, *see* 49 U.S.C. § 30111(a) (1994), who in turn explicitly rejected requiring airbags in all cars on the ground that a more flexible approach would better serve public safety. 49 Fed. Reg. 28,962, 29,000-02 (1984).

The tortured history of Section 208 demonstrates that federal regulators have vacillated on the relative merits of requiring or including airbags in passenger vehicles. *See Wood*, 865 F.2d at 398-99. It also reveals how far public

acceptance of air bags has come and, concomitantly, the success of the Secretary's decision on how to implement the Act. When the Secretary promulgated the regulations at issue in this case, she rejected an all-airbag rule out of concern that notwithstanding the safety benefits of airbags, the public might respond negatively to the unfamiliar technology if it was required in all cars. 49 Fed. Reg. at 28,989. In the Secretary's view, gradually phasing in airbags could potentially address "unfounded" fears among members of the public that airbags were unsafe because affording consumers a choice among passive restraint systems would expose them to the benefits of the airbag technology. *Id.* at 28,988, 29,001. *Cf. State Farm Mut. Auto. Ins. Co. v. Dole*, 802 F.2d 474, 488-89 (D.C. Cir. 1986). At the same time, the Secretary was concerned that not affording manufacturers discretion to install an automatic occupant restraint system ran the risk of impeding the development of more effective protective systems. 49 Fed. Reg. at 29,001. Thus, a performance standard making airbags one of several options car manufacturers could choose to comply with the passive restraint requirements of Standard 208, rather than mandating specific use of one safety device, would advance public safety in two respects, by allowing consumers to adjust to the new technology and by permitting experimentation with designs for even safer systems. 49 Fed. Reg. at 28,988, 28,997.

With this history in mind, and consistent with the policy decision made by the Secretary, we conclude that allowing design defect claims based on the absence of an airbag for the model-year car at issue would frustrate the Department's policy of encouraging both public acceptance of the airbag technology and experimentation with better passive restraint systems. Even if the Secretary's gradual adoption of an airbag requirement has increased public acceptance of the technology over time, concerns about public reaction still

existed when Geier's 1987 Honda was manufactured. Furthermore, regardless of possible fluctuations in public acceptance of airbags at that time, the concern about fostering the most effective passive restraint systems through experimentation remained. Therefore, "[b]ecause potential common law liability interferes with the regulatory methods chosen by the federal government to achieve the Safety Act's stated goals," *Pokorny,* 902 F.2d at 1123, Geier's lawsuit claiming that the car she was driving was defectively designed because it lacked airbags is implicitly pre-empted.[13] Accordingly, we affirm the grant of summary judgment to Honda.

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[13] Contrary to Geier's contention, our conclusion is not at odds with the position taken by the United States in prior Safety Act cases. The United States has previously contended that § 1392(d) "does not expressly or impliedly preempt design defect tort actions based on the claim that a vehicle was defective simply because it did not contain an airbag." Brief of the United States as Amicus Curiae, on Petition for a Writ of Certiorari at 7, *Wood v. General Motors Corp.*, 494 U.S. 1065 (1990) (No. 89-46). But, the United States ultimately concluded that a no-airbag claim was pre-empted in *Wood* because the Department of Transportation specifically determined that "an all airbag rule would *disserve* the *safety* purposes of the Act" and that this policy "would be disrupted by tort liability, which therefore would be pre-empted." *Id.* at 15 (emphasis in original). "If manufacturers are held liable for not installing airbags, . . . [a sizeable damage award against them] is likely to lead auto makers to install airbags in all cars. That outcome would obviously eliminate the diversity that the Secretary [of Transportation] found necessary to promote motor vehicle safety." *Id.* at 13-14; *see also* Brief of the United States as Amicus Curiae, on Petition for a Writ of Certiorari at 28, *Freightliner Corp. v. Myrick,* 514 U.S. 280 (1995) (No. 94-286).

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

ALEXIS GEIER, et al.,	)	
Plaintiffs,	)	
v.	)	C.A. No. 95-0064 (WBB)
AMERICAN HONDA MOTOR CO., INC., et al.,	)	**FILED** **DEC 10, 1997** **Clerk, U.S. District Court** **District of Columbia**
Defendants.	)	

MEMORANDUM

Plaintiffs filed this action for negligence against Defendants for injuries arising out of an accident that occurred while Alexis Geier was driving a 1987 Honda Accord. Plaintiffs' claim is based on the fact that the 1987 Honda Accord was not equipt with an airbag. Defendants have filed a motion for summary judgment, arguing that such claims are pre-empted by the National Traffic and Motor Vehicle Safety Act, 15 U.S.C. § 1381 *et seq.* (now 49 U.S.C. § 30101 *et seq.*) and the Federal Motor Vehicle Safety Standard 208, 49 C.F.R. §571.208. This motion is currently before the Court.

Neither the issues raised by Plaintiffs nor the arguments presented by Defendants are novel. While these issues and

arguments have caused a split among the many state courts and federal district courts that have looked at this question, the federal circuit courts have unanimously concluded that a cause of action for negligence based on the failure of a car manufacturer to install airbag during the 1980s is pre-empted by federal law. *Harris v. Ford Motor Company*, 110 F.3d 1410, 1416 (9th Cir. 1997); *Montag v. Honda Motor Co. Ltd.*, 75 F.3d 1414, 1417 (10th Cir. 1996); *Pokorney v. Ford Motor Co.*, 902 F.2d 1116, 1118 (3rd Cir. 1990); *Taylor v. General Motors Corp.*, 875 F.2d 816, 828 (11th Cir. 1989); *Wood v. General Motors Corp.*, 865 F.2d 395, 419 (1st Cir. 1988). Two other judges within this district have also found common law causes of action pre-empted by the national Traffic and Motor Vehicle Safety Act and the Federal Motor Vehicle Safety Standard 208. *Wiley v. General Motors Corp.*, No. 96-1692, order granting summary judgment, (D.D.C. 1996); *Hoftel v. General Motors Corp.*, 1988 WL 19615, *3 (D.D.C. 1988).

The Supremacy Clause of the Constitution, U.S. Const. art. VI, cl. 2, ensures that state law which conflicts with federal law is not given effect. The court should look to congressional intent when determining whether state law is pre-empted by federal law. *Medtronic v. Lohr*, 116 S. Ct. 2240, 2250. The clearest expression of congressional intent is found in the language of the law itself as well as the "statutory framework" surrounding it. *Id.*

When examining the language of the National Traffic and Motor Vehicle Safety Act we see that § 1392(d) prohibits states from establishing "any safety standard" not identical to the Federal Motor Vehicle Safety Standard 208 in effect at the time the vehicle is manufactured, which, in 1987, gave car manufacturers a choice as to whether to install airbags or not. Recovery on tort claims, such as that asserted by Plaintiffs, is

equivalent to a safety standard promulgated by the state legislature or a state regulatory body. "State regulation can be as effectively exerted through an award of damages as through some form of preventive relief. The obligation to pay compensation can be, indeed is designed to be, a potent method of governing conduct and controlling policy." *Cipollone v. Liggett Group, Inc.*, 505 U.S. 504, 521. Because the Federal Motor Vehicle Safety Standard 208 demonstrates that "the Federal Government has weighed the competing interests relevant to the particular requirement in question, reached an unambiguous conclusion about how those competing considerations should be resolved in a particular case or set of cases, and implemented that conclusion via a specific mandate on manufacturers or producers," *Harris*, at 1414 (quoting *Medtronic v. Lohr*, 116 S. Ct. 2240 at 2258), Plaintiffs' claim seems to be pre-empted by § 1392(d). However, the court must also determine the import and effect of § 1397(k) of the National Traffic and Motor Vehicle Safety Act which provides that "compliance with any Federal motor vehicle safety standard issued under this subchapter does not exempt any person from liability under common law." At first, § 1397(k), the savings clause, and § 1392(d), the pre-emption clause, seem to be in direct conflict. However, reading these sections together in light of the Supreme Court's pronouncements on the effect of common law regulation, it is clear that both sections can be given effect if the court finds that "compliance with Federal standards does not exempt anyone from any liability that the States have authority to impose." *Harris* at 1415. The clearest example of this is common law liability connected with design defects. This persuasive reading of the language of the law demonstrates conclusively that Plaintiffs' claim is pre-empted by federal law.

The "statutory framework" as revealed in Congress'

entire regulatory scheme further supports the conclusion that Congress intended the National Traffic and Motor Vehicle Safety Act to preempt findings of common law negligence when manufacturers failed to install airbags in cars manufactured in 1987. Throughout the 1980s the Department of Transportation refused to require airbags based on a reasoned consideration of the long-term safety effects of such a mandate, hoping that even more effective and efficient occupant protection systems would be developed.

For these reasons Defendants' motion for summary judgment will be granted in an order accompanying this Memorandum.

/S/
William B. Bryant
Senior United States District Judge

Date: December 9, 1997

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

ALEXIS GEIER, et al., Plaintiffs,	)	
v.	)	C.A. No. 95-0064 (WBB)
AMERICAN HONDA MOTOR CO., INC., et al., Defendants.	)	**FILED DEC 10, 1997 Clerk, U.S. District Court District of Columbia**

ORDER

For the reasons set forth in the foregoing Memorandum, it is this 9th day of December, 1997 hereby

ORDERED that Defendants' motion for summary judgment be, and the same is hereby, GRANTED.

/S/
William B. Bryant
Senior United States District Judge